Brazoria County District Court

Cause No. 2026-CV-0013

Kathleen Garcia, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	January 16, 2026
Plaintiff's counsel:	Sergio Acosta, Gardner & Morris Law Group

PARTIES

Plaintiff Kathleen Garcia is an individual who rseides in Texas and was the driver of a passenger vehicle involved in the collision described below. Defendant is the automobile liability insurer that issued the policy under which the at-fault driver was insured at the time of the collision. Defendant may be served through its registered agent for service of process in the State of Texas.

FACTS

On February 3, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in Baytown, Texas, when another vehicle, operated by a driver insured under Defendant's policy, entered the intersection and struck the side of Plaintiff's car. The impact was severe enough to disable both vehicles. Plaintiff reported the collision promptly, provided a recorded statement, and submitted the documentation Defendant requested. Defendant accepted coverage responsibility for the at-fault driver but has not paid the reasonable value of Plaintiff's losses.

NEGLIGENCE

The at-fault driver owed a duty to exercise ordinary care in operating a motor vehicle, including yielding the right of way and keeping a proper lookout. That driver breached this duty, and the breach proximately caused the collision and Plaintiff's injuries. Defendant, as liability insurer, is obligated under its policy to pay damages its insured becomes legally obligated to pay, and it has failed to make a reasonable settlement offer after liability became reasonably clear, in violation of the Texas Insurance Code and the duties of good faith and fair dealing.

DAMAGES

As a direct result of the collision, Plaintiff suffered serious and permanent injuries that have caused ongoing pain, limited mobility, and lost earning capacity. Plaintiff has incurred substantial medical expenses and will require future medical care, including further treatment and rehabilitation, for the remainder of his life. Plaintiff seeks recovery of past and future medical expenses, lost wages, physical pain and mental anguish, physical impairment, and other damages allowed by Texas law, in an amount of $75,900.00, together with prejudgment and postjudgment interest, court costs, and all other relief to which Plaintiff may be entitled.